Consider the **Time and Place of the Arrests and Seizures:** The Delhi Police said that Afzal and Shaukat were arrested in Srinagar based on information given to them by Geelani following his arrest. The court records show that the message to look out for Afzal and Shaukat was flashed to the police in Srinagar on 15 December at 5.45 a.m. But according to the Delhi Police's records, Geelani was arrested in Delhi on 15 December at 10 a.m.—four hours *after* they had started looking for Afzal and Shaukat in Srinagar. They haven't been able to explain this discrepancy. The high court judgement puts it on record that the police version contains a 'material contradiction' and cannot be true. It goes down as a 'disturbing feature'. Why the Delhi police needed to lie is a question that remains unasked, and unanswered.

When the police arrest somebody, procedure requires them to have public witnesses for the arrest, who sign an Arrest Memo and a Seizure Memo for what they may have 'seized' from those who have been arrested— goods, cash, documents, whatever. The police claim they arrested Afzal and Shaukat together on 15 December at 11 a.m. in Srinagar. They say they 'seized' the truck the two men were fleeing in (it was registered in the name of Shaukat's wife). They also say they seized a Nokia mobile phone, a laptop and Rs 10 lakh from Afzal. In his Statement of the Accused, Afzal says he was arrested at a bus stop in Srinagar and that no laptop, mobile phone or money was 'seized' from him.

Scandalously, the Arrest Memos for both Afzal and Shaukat have been signed in *Delhi,* by Bismillah, Geelani's younger brother, who was at the time being held in illegal confinement at the Lodhi Road Police Station. Meanwhile, the two witnesses who signed the seizure memo for the phone, the laptop and the Rs 10 lakh are both from the J&K Police. One of them is Head Constable Mohammad Akbar (PW—Prosecution Witness—62) who, as we shall see later, is no stranger to Mohammad Afzal, and is not just any old policeman who happened to be passing by. Even by the J&K Police's own admission, they first located Afzal and Shaukat in Parimpura Fruit Mandi. For reasons they don't state, the police didn't arrest them there. They say they followed them to a less public place—where there were no public witnesses.

So here's another serious inconsistency in the prosecution's case. Of this the High Court judgement says, 'The time of arrest of accused persons has been seriously dented.' Shockingly, it is *at this contested time and place of arrest that the police claim to have recovered the most vital evidence that implicates Afzal in the conspiracy*: the mobile phone and the laptop. Once